

THE PEOPLE OF THE STATE OF COLORADO VS.:

Defendant (Last Name) Nimer David Garibotto (First) (Middle) Violation Date 11 Mo. 14 Day 15 Yr. 2015

Defendant's Address 1700 17th # B-1 Boulder Co 80302 City State Zip Code Direction of Travel W Approx. Time of Violation 2315

Date of Birth 05/31/91 Mo. 24 Day 13 Yr. 260-0591 Driver's License Number and Type State CO Race W Ethnicity NH Sex M Height 6'3" Weight 175 Hair Bro Eyes Bro

Employer Name Employer Address Occupation Business Telephone Home Telephone 650-430-6255

Vehicle License Number and Type 599068N State CO Vehicle Year 2001 Make / Model / Body Style Subaru Outback Approximate Location of Violation, City of Boulder Boulder County, Colorado Beat/District Number 3

Vehicle Color (Top/Bottom) Maroon VIN 4S3BE656016215189 Traffic Accident () Yes (X) No Injuries Involved () Yes (X) No CDL () CMCL VEH REQ CDL INVOLVED () PLACARDED HAZ MAT ()

YOU ARE SUMMONED AND ORDERED TO APPEAR TO ANSWER CHARGES AS STATED BELOW IN: Registered Owner (Name and Address) (X) Same as above; or

BOULDER County Court At: (X) 1777 6TH STREET, BOULDER, CO 80306 () 1035 KIMBARK STREET, LONGMONT, CO 80501 ON Jan 20 2016 AT 9:00 A M

CHARGE(S)

☐ CRS 42-4-237 (2) Code Drove vehicle when safety belt not in use () Driver () Front Seat Passenger \$ Fine \$ Surcharge 0 Points	☐ CRS 42-4-1101 () () Code Speeding _____ MPH in _____ zone. \$ Fine \$ Surcharge _____ Points	☐ CRS 42-4-1409 (1) Code 954 Owner Operated Uninsured Motor Vehicle ☐ CRS 42-4-1409 (2) Code 956 Person Operated Uninsured Motor Vehicle ☒ CRS 42-4-1409 (3) Code 957 Failed to Present Evidence of Insurance Check only one box-- all are SUMMONS and 4 POINTS
SECTION CRS	CODE FINE SURCHARGE POINTS	☒ CRS 42-4-1301 (1) (a) Code 800 12 POINTS Drove vehicle when under the influence of alcohol or drugs or both. ☐ CRS 42-4-1301 (1) (b) Code 801 8 POINTS Drove vehicle while ability impaired by alcohol or drugs or both. ☒ CRS 42-4-1301 (2) (a) Code 812 12 POINTS Drove vehicle with excessive alcohol content. ☐ CRS 42-4-1301 (2) (a.5) Code 810 4 POINTS Person under 21 drove vehicle with BAC of 0.02 but less than 0.05 (first offense). ☐ CRS 18-13-122 Defendant, being under twenty-one years of age, did unlawfully possess and/or consume ethyl alcohol within the State of Colorado.
SECTION CRS	CODE FINE SURCHARGE POINTS	

THE UNDERSIGNED HAS PROBABLE CAUSE TO BELIEVE THAT THE DEFENDANT COMMITTED THE OFFENSE(S) AGAINST THE PEACE AND DIGNITY OF THE PEOPLE OF THE STATE OF COLORADO AND AFFIRMS THAT A COPY OF THIS SUMMONS, COMPLAINT OR PENALTY ASSESSMENT WAS SERVED UPON THE DEFENDANT.

OFFICER-PRINT LAST NAME Coon OFFICER [Signature] EMPLOYEE NO. 7152 DATE ISSUED 11/15/15 Mo. 11 Day 15 Yr. 2015

PENALTY ASSESSMENT TRAFFIC INFRACTION () OFFENSE ()

My signature is a promise to pay this penalty assessment within 20 days. With payment, I acknowledge guilt of all charges listed above and understand that the points indicated will be assessed against my driver's license. If I do not pay, my signature is my promise to appear in court. If I am under the age of 18 years and not emancipated, I understand that I must notify my parent or legal guardian within 72 hours of receiving a penalty assessment.

DEFENDANT [Signature] DNA SURCHARGE TOTAL TO BE PAID BY MAIL (FINE AND SURCHARGE) \$2.50

SUMMONS TRAFFIC INFRACTION () OFFENSE ()

Without admitting guilt, I promise to appear at the time and place indicated above. If I am under the age of 18 years and not emancipated, I understand that I must notify my parent or legal guardian within 72 hours of receiving a summons into court.

DEFENDANT [Signature] NOTICE: SEE INSTRUCTIONS ON REVERSE SIDE

ATTORNEY FOR :	ATTORNEY WAIVED
DEFENDANT	
DATE ADVISED OF RIGHTS AND ARRAIGNED:	JURY WAIVED
REQUEST FOR TRIAL	NUMBER OF JURORS:
CONTINUED TO:	AT REQUEST OF:
CONTINUED TO:	AT REQUEST OF:

CASE NUMBER:		TRIAL/HEARING									
		DATE: 20									
CHARGE NUMBERS	PLEA		FINDING				FINES & COSTS			SUSPENDED	
	Guilty	Not Guilty	Dismiss	Guilty	Not Guilty	Fine	Days Jail	Costs	Fine	Days Jail	Costs
1.											
2.											
3.											
4.											
5.											

DOCKETED

FILED IN THE 20TH JUDICIAL DISTRICT
NOV 16 2015
BOULDER COUNTY, CO

TOTAL FINES COLLECTED \$
TOTAL COSTS COLLECTED \$
TOTAL COLLECTED \$
DATE PAID

SIGNATURE OF JUDGE OR CLERK
